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File No.: EXP202209683

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 30/08/2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at CALLE ***DIRECCIÓN.1, PROVINCIA.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for a camera installed inside their home, which is clearly oriented towards the public road and the home of the complainant's parents, without having authorization for this.

They provide images showing a camera in a window of a residence, oriented outward, capable of capturing the public road.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 26/09/2022, as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On November 21, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated that it is a single deterrent camera, which was not functioning, intended only to deter certain neighbors who were seeking to create dangerous and unwanted conflicts, as they feared that they might want to enter the respondent's home in their absence, and they were trying to deter them.

FIFTH: On April 27, 2023, a resolution proposal was made, proposing:

That the Director of the Spanish Agency for Data Protection proceed to archive the actions initiated against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is stated, according to the complainant's assertion, that the respondent is responsible for a camera installed inside their home, which is clearly oriented towards the public road and the home of the complainant's parents, without having authorization for this.

SECOND: It is stated, according to the respondent's assertion, that this camera has only deterrent effects, is not connected, and therefore does not record images, and no processing of personal data is carried out.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

Regarding the allegations presented, the following response is provided:

- The responding party alleges that it is a single deterrent camera, which was not functioning; they only intended to deter some neighbors who were merely seeking to generate dangerous and undesirable conflicts, as they feared that these neighbors might want to enter the home of the responding party in their absence, and they were attempting to dissuade them.

In this regard, this Agency reminds that, even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

However, in the present case, since it is a camera that is not capturing images, no data processing is taking place, and therefore, no infringement of data protection regulations is observed.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out.

In the present case, since it is a non-operational camera, therefore merely deterrent, not connected and not processing data, it is considered that the filing of this sanctioning procedure is appropriate.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of sanctions whose existence has been established,
the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

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Mar España Martí

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